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represented a real test by the Communists of the United States policy of peace through strength. Kennan underlined the possible implications which the events in Korea might have, particularly in regard to Germany. If the Communist efforts in Korea and other weak spots in the Pacific were successful, he had no doubt that a similar test of strength would follow in Germany. There was no disposition on the part of the Ambassadors to disagree with this view and several of them expressed general agreement with, and appreciation for, Kennan's review of the background of the considerations which had led to the President's decision on Korea.

13. DEA/50069-A-40

L'ambassadeur aux États-Unis
au secrétaire d'État aux Affaires extérieures

Ambassador in United States
to Secretary of State for External Affairs

TELEGRAM WA-1417 Washington, June 27, 1950

SECRET. IMMEDIATE.

KOREA

1. In other messages today I have described the action taken by the United States Government and the reasons given by the State Department which led to the decision of the President. This message contains some thoughts of my own.

2. Since I learned on Sunday morning of the attack on South Korea I have been in doubt whether the necessary degree of resolution and military strength would be forthcoming here to defeat what must certainly be an effort directed from Moscow to undermine the position of the Western countries, and of the United States in particular, in the Far East. The President's decision and the reasons given for it go much further than I had expected and reveal that the United States, in spite of domestic controversy over Far Eastern policy, can promptly adopt firm and far-reaching measures. I share the belief expressed today at the State Department that the risks of inaction are greater than the admitted risks of the steps announced. The resolution and prompt action of the United States should obliterate in this context haunting memories of the results of indecision and attempts at compromise in relations with Germany, Italy and Japan in the years before the war.

3. One striking feature has been that the United States has shouldered the load which it alone was in a position to carry, without seeking to secure pledges of material assistance from other countries in advance. They are concerned, of course, to establish that their action is in support of the United Nations and in conformity with the recommendations of the Security Council, but initially at least they are now seeking from other friendly countries no more than moral and diplomatic support. At this morning's meeting at the State Department no word was said in favour of more direct aid by other countries, and it was positively asserted that only the United States was able to undertake any immediate measures.

4. These decisions should, in time, bring to an end much of the domestic dispute over Far Eastern policy. They should also establish to the satisfaction of all but a few bigoted isolationists that no return is now possible to the old attitude of complacent self-sufficiency in international affairs. Of course, if the Soviet Government reacts violently and itself takes over military action in support of North Korea, no-one can tell into what we shall all be led. I think however, that I am right in saying that the last occasion in which the Russians risked direct military action to extend their sphere was their own attack on Finland in 1939. The other extensions of their sphere have come either as a result of general war or by the process of internal subversion.

5. One important aspect of this decision is that it makes amends for the now evident inadequacy of United States policies in South Korea over the last year or so, which left the Republic unprepared in terms of defensive arms, such as anti-tank and anti-aircraft guns and stocks of ammunition, and which were presumably based, in part, on inadequate intelligence and faulty appreciations of the actual situation.

6. With regard to the measures taken, only the event can tell whether the military assistance afforded will have come soon enough and will be sufficient to accomplish the objective. If naval and air support alone cannot enable the South Korean forces to expel the invaders, the way is still open for the commitment of ground forces if necessary. I can only assume that the decision was based on the best military appraisal of what was immediately required and could be provided in the shortest possible time.

7. The President's announcement also seems to leave the Nationalist Government on Formosa in the strange position of being reduced to the status of a Chinese Government-in-exile, subject to orders from the United States, which is permitted to retain control for the present of an Island the eventual status of which is undetermined, but is not permitted to dispute control of the Chinese mainland. The boldness and simplicity of this attack on the recurrent Formosa problem do not mean that it will not continue to be an international headache, and there will undoubtedly be further explanations required from the Administration.

8. It is too early to judge with any certainty what the reaction of public opinion in this country will be, but the first indications are distinctly encouraging. I hope that in any public comment you may be called on to make you will feel able to welcome in cordial terms the action announced by the President. A statement on these lines by the Canadian Government, together with the endorsement already given in London, would be of real value to the Administration.

250. PCO

Note du secrétaire d'État aux Affaires extérieures pour le Cabinet

Memorandum from Secretary of State for External Affairs to Cabinet

CABINET DOCUMENT NO. 214-50[23] [Ottawa], September 11, 1950

SECRET

ASIAN QUESTIONS BEFORE THE GENERAL ASSEMBLY

One of the principal struggles between the Western and Soviet delegations at the Fifth Session of the General Assembly will be for the support of Asian governments and Asian public opinion for their respective policies. It is a generally accepted thesis that the principal reason for the Soviet Government ending its boycott of the United Nations Security Council was its belief that it was foregoing a valuable platform from which to influence Asian public opinion on world issues. In the struggle between the North Atlantic group of powers and the Soviet Union and its satellites, the countries of Asia offer the best field for Communism to make military and political gains. The teeming populations and vast resources of Asia would, if absorbed, add greatly to the strength of the Communist bloc. A reduction in Western influence in Asia would militate against the strength of the non-Communist world. Because an element of misunderstanding has arisen between Asian countries led by India and a majority of the United Nations members led by the United States over the question of relations with China, the Soviet Delegation to the General Assembly which will be led by Foreign Minister Andrei Vishinsky, may be expected to try its best to widen the breach. Canadian effort should be directed toward eliminating misunderstanding and bridging, where possible, the gaps between the policies of the United States Government and those of Asian governments, bearing in mind that the flexibility of United States policies will be limited by the November congressional elections and that on the other hand Asian opinion may become impatient with the delays of American politics and, therefore, more susceptible to Soviet propaganda.

Chinese representation, a post-hostilities settlement for Korea, the United States "neutralization" of Formosa, and Chinese Nationalist charges of Soviet intervention in the Chinese civil war will be the principal Asian questions that may be brought before the General Assembly. Other issues, such as South West Africa, may give rise to misunderstanding between the Asian and Western delegations. Because the Korean and Formosan questions are still before the Security Council and because the report of the United Nations Korean Commission and the report of the Interim Committee on the Nationalist charges of Soviet intervention have not yet been published, it is not possible to lay down hard and fast detailed instructions

[23] Approuvé par le Cabinet, le 12 septembre 1950.
Approved by Cabinet, September 12, 1950.

for the Canadian Delegation. The following paragraphs, however, suggest an approach to each of these problems based on information presently available.

Chinese Representation

Because the Peking Government firmly controls the mainland of China and has an army of about three million veteran troops, it would be realistic politics for the United Nations to do whatever is possible to secure the acquiescence if not the cooperation of that government in the maintenance of peace in the Far East. One way of going about this would be to give an opportunity to the Peking authorities to express their views before appropriate United Nations bodies on Far Eastern security questions. The United Nations will be a healthier association if dissenting views are stated inside the organization rather than outside. If the Chinese Communists are not given an opportunity to state their own case it will be stated for them by the Soviet Delegation with their own twist. The Indians, too, would no longer require to assume the part of eloquent apologists for Communist China. If the Chinese Communists were given the chance to state their own case and did so in the intemperate language they have learned from the Soviets the Indians might be constrained to adopt a more objective attitude than they are now assuming. The Canadian Delegation should, therefore, support the hearing of Chinese Communist representatives before appropriate United Nations bodies in matters pertaining to the peace of the Far East such as Formosa and the Korean settlement where their acquiescence is desirable. Common justice demands that both sides be heard in the Formosan case at least.

As regards a possible change in Chinese representation from Nationalist to Communist the Canadian Delegation should support any move which would delay a final decision on credentials until after the Assembly had had an opportunity to consider the item proposed by Cuba entitled "Recognition by the United Nations of the Representation of a Member State". Such delay would permit the heat of the United States election campaign to subside and also give the delegation an opportunity to estimate the development of the attitudes of other delegations on the question of Chinese representation.

The United Kingdom Cabinet have decided to vote in favour of seating the representative of the Peking Government at the General Assembly if this question is raised on its merits and the Peking Government has not before then performed some significant unfriendly act such as attacking Formosa or openly aiding the North Koreans. As even Chinese Nationalist leaders admit that the grip of the Peking Government on the mainland is unshakeably firm it seems somewhat unrealistic to continue to accept the Formosan Government as representing "China", particularly when they seem to be doing all in their power to bring on a third world war as the only hope of reestablishing their position in China. When the vote is finally taken in the Assembly on the question of which group should represent "China" the Canadian delegation may, in the light of circumstances then prevailing, avoid giving its support to either side by abstaining.

Formosa

The Formosa question, which is now on the agenda of the Security Council, may also be brought before the General Assembly in one way or another. The General Assembly might be asked to call on both the Chinese Nationalists and Communists to cease any hostile action against each other until the United Nations has reestablished peace and security in the Korea area. A resolution in this sense would be advantageous if observed. The Delegation should consider carefully, however, what action the United Nations might be under moral compulsion to take if the resolution was not heeded by one of the parties.

With regard to the ultimate disposition of Formosa, the attitude of the Canadian Delegation should be that in principle Canada adheres to the Cairo declaration, which promised the restoration of Formosa to the Chinese state. This promise was confirmed by the Potsdam Agreement, upon which the Japanese Instrument of Surrender was based and which was signed by Canada. The political wisdom of repudiating wartime undertakings is doubtful. Furthermore the *de facto* administration of Formosa by the Chinese Government has been acquiesced in by the Canadian Government, through acceptance of a note from the Chinese Government in 1946, stating that Formosa was restored to Chinese sovereignty and that Formosans had regained their Chinese citizenship; through agreement that the Commercial Modus Vivendi with China should cover Formosa; and through various administrative actions.

The question of possession of Formosa cannot be extracted from its Chinese Civil War context and treated as a separate problem. In matters of this sort it has been Canadian policy to be prepared to make offers of good offices in order to help bring about an end to disputes, but not to favour the imposition of a solution upon one side or the other. The Canadian Delegation should follow this line with regard to the Formosa problem and should be ready to put forward or support any compromise proposal which might have the effect of lessening the differences between the United States and Asian countries in this matter and of reducing, in consequence, the likelihood of a Chinese Communist assault upon Formosa.

Chinese (Nationalist Government) Charges Against Soviet Russia

The Interim Committee not having dealt with the Chinese charges of Soviet violation of the United Nations Charter and of the Sino-Soviet Treaty (1945) through intervention in the civil war, it is likely that this matter will again be referred to the General Assembly.

The Canadian attitude to this question has been that it should be played down, on the grounds that to pursue the Chinese charges would be impractical, since most of the alleged violations of the Sino-Soviet Treaty of 1945 occurred some years ago and at a time when the Nationalist Government was still in control of the mainland, whereas now the Chinese mainland is in *de facto* control of a government, recognized by a considerable number of United Nations members, which would oppose investigation of the charges. Discussion of the Chinese charges was also considered politically undesirable, because it was not wished to draw Soviet counter-charges of United States intervention in the Chinese Civil War in support of Chiang Kai-shek.

The Canadian Delegation should maintain this attitude in principle but it should be prepared for the Chinese Nationalist charges against Russia to be brought into full debate in the Assembly, if the United States is widely and effectively assailed in the United Nations by the Soviet Union on the score of intervention in the Chinese Civil War when the Formosan question is discussed.

Korea: Post-hostilities Settlement

Consideration of the Report of the United Nations Commission on Korea will provide an opportunity to pass the question of the post-hostilities settlement for Korea from the Security Council to the General Assembly. There is a precedent for this procedure in the Palestine case where the Assembly considered long-range settlement problems while the Security Council was trying to stop the fighting. In the Korean case the Assembly provides the only means of getting around the Soviet veto in the Security Council. In dealing with this question the Assembly is on strong ground as it has had the problem of the independence and unification of Korea under consideration for three years and has made this one of the principal missions of its Korean Commission.

It is important that the Report of the Korean Commission should be placed as high as possible on the agenda in order that there may be sufficient time for careful study of the difficult question of a post-hostilities settlement for Korea.

The Canadian Delegation should seek support for a proposal that, after receiving the Report of the Korean Commission and providing an opportunity for general discussion of the Korean question, the Political Committee should move quickly to pass a resolution along the following lines:

> The Political Committee established a sub-committee composed of representatives of Australia, India, Pakistan, Philippines and Sweden, under the chairmanship of India, to consider the question of a post-hostilities settlement for Korea and to make a report to the Committee by November 15 including a draft resolution or resolutions by which the General Assembly may deal with this question. In formulating its recommendations the sub-committee shall take into account the resolutions on Korea adopted by the General Assembly and the Security Council. The sub-committee may hear evidence from any witnesses who seek to present their views in person or in writing and whom the sub-committee considers it would be useful to hear, having in mind the date for submitting its report to the Committee.

It is contemplated that the sub-committee would submit a draft resolution which would recall the previous Assembly resolutions and establish a new Korean Commission. It is hoped that this new Korean Commission would have perhaps a majority of Asian members, but would not include China (which is on the present Commission). This Commission could serve in an advisory capacity to the Commander of United Nations forces in Korea and the Government of the Republic of Korea. It should be charged with the conduct of negotiations with the North Korean authorities in regard to the terms of surrender, the establishment of a provisional United Nations administration in North Korea, the observation of elections in North Korea, and consultation concerning the establishment of a unified Government for Korea, and assisting that Government in the task of rehabilitation.

It would not be appropriate for the United Nations to request new elections in South Korea as it has approved those held there in May 1948 as "a valid expression of the free will of the electorate in that part of Korea". The second set of elections held in South Korea on May 30, 1950 are reported to have resulted in the election of a pretty representative Assembly that would probably have proceeded to compel reforms in the rather autocratic administration of President Syngman Rhee if the Northern aggression had not intervened. A demand for new elections in South Korea would question the validity of the earlier elections and this does not seem desirable.

It is not necessary or desirable for the United Nations to recognize President Rhee's claim to jurisdiction over the whole peninsula (see article 4 of the Constitution of the Republic of Korea). Indeed, Canadian recognition of the Republic of Korea, extended July 14, 1949, acknowledged that its jurisdiction only extended to the 38th parallel. A similar attitude was taken by other Governments. Accordingly it would seem appropriate for the United Nations to take over the administration of North Korea until elections have been held there and the elected representatives have met with the elected representatives of South Korea to review the Constitution and important legislation before announcing that the Government of the Republic of Korea has assumed jurisdiction over all of Korea.

Article 53 of the Constitution of the Republic of Korea provides that the President and Vice-President shall be elected by the National Assembly by a two-thirds majority of those present with a quorum for this purpose of two-thirds of the members of the Assembly. As elections in North Korea would add about another 100 members to the 210 members of the present Assembly it would seem appropriate to have a new election for President and Vice-President when the enlarged Assembly is brought together. This would meet criticisms that have been levelled against President Rhee and his administration. If he were re-elected he would have a new and more broadly based mandate; if not, Korea would have a new administration.

[L.B. PEARSON]

Council may contribute something to the solution of these problems. Furthermore, we have been considering the feasibility of proposing that the General Assembly appoint a commission to examine all aspects of the Formosa problem under conditions where all parties would be obligated to refrain from the use of force while the matter is under consideration. Possibly the Commission might be instructed to report back to the next General Assembly meeting. I present this thought very sketchily, because it is still sketchy in our own thinking. An obvious factor bearing upon it would be the nature and extent of action taken in the Security Council. Another would be the course of interim events in the area.

A word about the matter of Chinese representation in the UN. We cannot in good conscience alter our present opposition to seating the Chinese Communist representatives. I think you are fully aware of our reason for this. We would not wish to see the question of Chinese representation, about which there is considerable disagreement among the non-Communist countries, brought to the forefront while the Security Council is occupied with urgent matters relating to the aggression in Korea. After a solution of the Korean crisis, we should be quite willing to have the question considered on its merits. In our view, the heart of the matter is not our opposition to the Chinese Communists, but rather the fact that many members of the UN obviously have the same doubts and misgivings respecting the Peiping regime as do we and that these doubts are being confirmed by Peiping's attitude toward Korea and its other neighbors.

I am most grateful that you have given me your views on one of the most complicated problems now facing us. I hope that you will continue to let me have the benefit of your comments and suggestions.

Cordially,

DEAN [ACHESON]

282. DEA/8508-40

Extrait du procès-verbal de la réunion des chefs de direction

Extract from Minutes of Meeting of Heads of Divisions

SECRET Ottawa, September 18, 1950

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FORMOSA

Mr. Menzies said that a memorandum from the United Kingdom High Commissioner had been received setting forth the United Kingdom Government's views on Formosa. On the basis of those views the United Kingdom authorities intended to consult with other interested and friendly governments in an attempt to solve the Formosa problem. The United Kingdom attitude in summary was as follows:

(1) Formosa should be regarded as "Chinese", i.e., part of the Chinese State.

(2) It is admitted that the neutralization of Formosa is a matter of strategic necessity during the present crisis, especially in view of the unfriendly attitude of the

Peking Government. Genuine neutralization should be enforced, however, and Nationalist military action against the mainland should not be permitted.

(3) A formula must be found whereby United Nations support is obtained for the neutralization of Formosa in order to deter a Chinese Communist assault on the Island. To this end every effort should be made to dispel the impression that Western Powers have undertaken to defend the Chiang Kai-shek Government in Formosa.

(4) The practicability of holding a plebiscite in Formosa under United Nations trusteeship appears to be doubtful because of the present possession of the Island by Chiang Kai-shek with his considerable armed forces and because the Peking Government is not represented in the United Nations.

(5) A possible course of action which would help the present position and deal with the long-term problem to some extent might be the adoption of a Resolution by the General Assembly (to avoid a Soviet veto in the Security Council) which would

(a) Recommend that Formosa should in due course revert to China;

(b) propose that any action to this end should await the restoration of peace in the Pacific area and that in the meantime no action should be taken by anybody to disturb the *status quo* or use the Island as a base; and

(c) establish a Commission to recommend when the moment is appropriate for the hand-over and the conditions under which it should take place. In the United Kingdom view such a resolution would have the advantages of not abandoning the Cairo Declaration, but would enable a hand-over to be deferred until the Chinese Communists should make some signs of behaving reasonably in international affairs. It might also conceivably save the Peking Government's face sufficiently to enable it to refrain from making direct assault on Formosa.

Ultimate United States policy towards Formosa is not fixed, according to our Ambassador in Washington, and will be discussed with representatives of other friendly powers in New York. The main objectives of the United States are to see that Formosa is neutralized for the duration of the Korean conflict and that its eventual disposition is settled without resort to force. The State Department would like to have the status of Formosa settled by the United Nations and hopes that some friendly delegation might raise the question in the General Assembly in the form of a resolution appointing a Commission to report to the next Session of the Assembly and calling upon both Chinese Nationalists and Communists to take no action pending the outcome of the Commission's deliberations. It appears that the State Department no longer regards the Cairo Declaration as binding and that it hopes that responsibility for the disposition of Formosa can be handed over to the United Nations without causing a serious division among members.

The Canadian view is that in principle we adhere to the Cairo Declaration, which promised the restoration of Formosa to the Chinese State. This promise was confirmed by the Potsdam Agreement upon which the Japanese Instrument of Surrender was based and which was signed by Canada. The political wisdom of repudiating wartime undertakings is doubtful. Furthermore, the *de facto* administration of Formosa by the Chinese Government has been acquiesced in by the Canadian

Government, through acceptance of a note from the Chinese Government in 1946 stating that Formosa was restored to Chinese sovereignty and that Formosans had regained their Chinese citizenship; through agreement that the commercial modus vivendi with China should include Formosa; and through various administrative actions. The question of possession of Formosa cannot be extracted from its Chinese civil war context and treated as a separate problem. In matters of this sort it has been Canadian policy to be prepared to make offers of good offices in order to help bring about an end to disputes but not to favour the imposition of a solution upon one side or the other. We should be ready to put forward or support any compromise proposal which might have the effect of lessening the differences between the United States and Asian countries in this matter and of reducing in consequence the likelihood of a Chinese Communist assault upon Formosa.

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283. DEA/50056-A-40

Le chef de la délégation à l'Assemblée générale des Nations Unies au secrétaire d'État aux Affaires extérieures

Chairman, Delegation to United Nations General Assembly, to Secretary of State for External Affairs

TELEGRAM 17 New York, September 22, 1950

SECRET

Repeat Washington No. 4.

FORMOSA

Following from Ritchie and Riddell, Begins: Following is text of a draft resolution on Formosa prepared by the United Kingdom delegation, Begins:

Noting (a) That Formosa was Chinese territory for more than two centuries before being ceded to Japan in 1895,

(b) That the signatories to the Cairo Declaration declared their intention that Formosa should be restored to the Republic of China;

Recognizing that two parties at present claim the right to administer Formosa, that there have been threats of an armed attack on Formosa from the Chinese mainland and that Formosa has been used as a base for attacks on the Chinese mainland, and that an attempt to settle the dispute by force or the continuance of attacks on the Chinese mainland from Formosa would heighten international tension at a time when the situation in the Pacific area is already tense as a result of events in Korea;

Decides to establish a Commission which, bearing in mind China's claims as set out above, should study the problem and submit a report to the Assembly containing recommendations for the future of Formosa. The Commission should consult with all interested parties, including the Central People's Government, and should take into account the interests of the people of Formosa;

Recommends (a) That, pending consideration of the Commission's report by the General Assembly, there should be no attempt to seek a solution of the issue by force,

(b) That Formosa should not be used as a base for attacks on the Chinese mainland;

Requests all parties to render every possible assistance to the Commission in the performance of its task. Text ends.

2. We had a talk with Dening of the United Kingdom delegation who is the author of this resolution this afternoon. He said that he had shown it to the United States delegation who had been in general agreement with it but said that they had a draft of their own which they preferred. Dening said that, while the United States delegation had originally suggested that they would like the resolution on Formosa to be sponsored by some other Government they had now apparently decided to put forward their own text. Foster Dulles, who had seen the United Kingdom resolution had commented that he did not like part A of the first paragraph referring to the historical connection between Formosa and China. Dening had also shown his resolution to the Indian delegation who had not objected to it.

3. So far as the long term solution of the Formosan problem is concerned Dening said that he had had a talk with Walter Lippman just before he published his recent article on the subject advocating de-militarization and local autonomy for Formosa. Dening said that this sort of solution might ultimately be possible but that it would be difficult if not impossible for the Chinese Communist Government to accept either de-militarization or any substantial degree of Formosan autonomy at any early stage in the negotiations. It was very much of a question whether even in the long run they would be willing to accept a solution along these lines. Meanwhile the first stage was to "take the heat off" the question of Formosa by setting up a Commission to study the problem of its future.

4. We should appreciate your comments and suggestions on the resolution. Our guess is that the United States text, even if it has the same object in view, will be very differently drafted if only for reasons of acceptability to United States public opinion. We feel, however, that if the United States would be prepared to accept something along the general lines of this resolution this would be a step forward.

5. Incidentally Dening remarked that he was seeing Foster Dulles this afternoon to discuss a Japanese Peace Treaty. Ends.

284. DEA/50056-A-40

Note pour le secrétaire d'État aux Affaires extérieures

Memorandum for Secretary of State for External Affairs

SECRET [New York], October 19, 1950

FORMOSA

Attached is a copy of a "modified text" of the United Kingdom draft resolution on Formosa, with changes and additions suggested by the United States. This was

given to me informally this afternoon by Allison, who had not yet had an opportunity to give it to the British — and who asked me to keep it for a day or so before sending it on to Ottawa. As a compromise I sent a copy to Menzies, by bag, under a personal note, explaining the circumstances.

2. The additions to the original text in paragraphs 1 and 4 have been underlined.[41] Paragraph 7, referring to the Security Council, is entirely new. Paragraph 5 (first recommendation) has been reworded to make it clear that its restrictive force bears equally on the Chinese Communists and Nationalists, and to tighten the original by referring to the "adoption by the Assembly of recommendations concerning the problem." For comparison, following is the United Kingdom text:

> *Recommends* (a) that, pending consideration of the Commission's report by the General Assembly, there should be no attempt to seek a solution of the issue by force,
> (b) that Formosa should not be used as a base for attacks on the Chinese mainland.

3. The purpose behind the changes is explained at the end of the attached text. As Allison pointed out, the United States do not assume that Formosa must inevitably go to the Chinese Communists (at least for some time) and wish to stress two considerations in addition to the conflicting Chinese claims: the interests of the Formosans and the maintenance of peace in the Pacific. The implication is that it might be contrary to both considerations to hand Formosa to the Communists in the near future. In support of this Allison maintained that it is by no means clear that the Communists are going to be able to maintain complete control of the mainland; that China may be in for a continuation of the internal disturbances and divisions which have been characteristic of her modern history; and that, in the circumstances, it would not necessarily be wise to transfer Formosa from a moribund claimant to one whose authority is still dubious. (If this represents more than pre-election rationalizing, it makes the solution of both the Formosa problem and of Chinese representation in the United Nations more difficult than ever).

4. The United Kingdom draft had been intended to provide a means of putting the question on ice for the time being, with as limited a commitment as possible on the part of the General Assembly and with the implication that the task in hand is to find a suitable formula which would permit the Chinese Communists to gain control without resort to force. (The United Kingdom officials concerned say privately that force is the only eventual solution and a resolution can only hope to delay this). The United States have now carried the United Kingdom draft to its logical conclusion and amended it to make it quite clear that responsibility for Formosa should be vested in the United Nations. If the Communists do not wait for an Assembly recommendation, the issue would immediately be referred to the Security Council, presumably as a breach of the peace, and then to the Assembly again under the "United Action" resolution.[42] If the United States draft were adopted, it would be difficult for the other members of the United Nations to refuse to accept the respon-

[41] Les modifications ne sont pas soulignées dans cette version du document.
The changes are not underlined in this copy of the document.
[42] Voir le document 257./See Document 257.

sibility for neutralizing Formosa that is now held by the United States through the Seventh Fleet.

5. As an indication of United States thinking, Allison said that this resolution would not put the General Assembly in the impossible position of trying to handle something beyond its powers. It would be a genuine deterrent, since Peking would hesitate to take action, unless the Chinese Communists and the Russians are ready to start the major war. In other words, the United States would like to equate Formosa with South Korea.

R. COLLINS

[PIÈCE JOINTE/ENCLOSURE]

[October 19, 1950]

Following is modified text of British draft with our additions and changes:

"Noting (A) that the signatories to the Cairo declaration declared it to be one of their purposes that all the territories that Japan had stolen from the Chinese, including Formosa and the Pescadores should be restored to the Republic of China;

"(B) that no formal act restoring sovereignty to China has yet occurred, although at the end of hostilities with Japan the Chinese Nationalist Government was permitted to assume the administration of the island;

"Recognizing that two parties, both Chinese, at present claim the right to administer Formosa, that there have been threats of an armed attack on Formosa from the Chinese mainland and that Formosa has been used as a base for attacks on the Chinese mainland, and that an attempt to settle the dispute by force or the continuance of attacks on the Chinese mainland from Formosa would heighten international tension at a time when the situation in the Pacific area is already tense as a result of events in Korea, and would be prejudicial to the interests of the people of Formosa;

"Decides to establish a Commission composed of the representatives of (specified states) which, bearing in mind China's claims, taking into account the interests of the people of Formosa, and giving consideration to the maintenance of peace in the Pacific, should study the problem and submit a report to the GA containing recommendations for the future of Formosa and the Pescadores. The Commission should consult all government authorities and parties concerned, including both Chinese claimants;

"Recommends that, pending the study by the Commission and adoption by the GA of recommendations concerning this problem (A) there be no attempt to seek a solution of the status of Formosa by force, (B) Formosa not to be used as a base for attacks on the Chinese mainland;

"Requests both Chinese parties to act in conformity with the recommendations in the preceding para;

"Recommends to the SC that it consider immediately any action in contravention of (A) or (B) of above recommendation with a view to adopting appropriate measures for the maintenance of international peace and security;

"Requests all parties to render every possible assistance to the Commission in the performance of its tasks."

In the first operative paragraph beginning with "decides" insertion of phrase "taking into account the interests of the people of Formosa" is predicated upon our belief that interests of Formosan people should be mentioned on equal level with China's claim. In addition to China's claim and wishes of Formosans' broad interests of UN in peace of Pacific area also a factor to be taken into account.

Rephrasing of first recommendation is drafting change designed primarily to define more clearly the period during which that recommendation applies.

Department believes desirable that first recommendation of British draft be further strengthened. With this in mind Department has added recommendation referring to SC action as warning to those who might violate recommendation to refrain from use of force.

285. DEA/50056-A-40

Le chef de la délégation à l'Assemblée générale des Nations Unies au secrétaire d'État aux Affaires extérieures

Chairman, Delegation to United Nations General Assembly, to Secretary of State for External Affairs

TELEGRAM 300 New York, November 3, 1950

SECRET. IMPORTANT.

Repeat Washington No. 31.

At Commonwealth meeting yesterday morning the three following topics were discussed which are covered in my three immediately following teletypes.†

FORMOSA

The United Kingdom representative (Younger) referred to previous United States redraft of United Kingdom draft resolution on Formosa (which was sent to you under cover of my despatch No. 79 of October 20th)† which contained a number of points which the United Kingdom Government had not approved. As a result of further conversations with United States officials, State Department had produced a further redraft but this had not yet been finally approved by the United States Government.

Following is text of this latest United States redraft of United Kingdom resolution, Begins:

"*Noting* that the signatories to the Cairo Declaration declared it to be one of their purposes that certain of the territories formerly held by Japan, including

Nations Commission to consider the future of Formosa because we think that this would imply a commitment by United Nations to defend the island while the Commission was preparing its report, and might lead to a further commitment arising out of the Commission's report.

3. I have been wondering whether, in view of the misgivings of their friends on this subject, and perhaps also because of their own divided counsels, United States Government might not be prepared to permit the Formosa item to lapse during this Assembly. Arguments which Dulles advanced last week for postponing the item until later in this session will, in all probability, be equally applicable two or three weeks hence. United States delegation might, therefore, be prepared to ask for further postponement on these grounds. Any embarrassment they might feel in doing so would certainly be less than difficulties which will arise if, in Political Committee, impressive common purpose which was shown over Korea disappears during discussion of Formosa.

4. I should be grateful if you would discuss Formosa item with State Department along lines indicated in this telegram and let me know results of your conversations.

5. My immediately following teletype† contains relevant passage of a public statement which I made at Windsor on November 15th.[43] I presume that full text of this statement will have been sent you from Ottawa.

6. Since this message was written, I have had a long conversation with Hickerson, to whom I have expressed most of the ideas expressed above. A full account of my conversation with Hickerson will follow.†

296. DEA/50056-A-40

L'ambassadeur aux États-Unis
au secrétaire d'État aux Affaires extérieures

Ambassador in United States
to Secretary of State for External Affairs

TELEGRAM WA-3024 Washington, November 22, 1950

Addressed Candel No. 57.
Your telegram No. 57, Formosa.

1. I have discussed with Dean Rusk today the arguments for postponing the Assembly resolution on Formosa. Rusk said that this matter was being given consideration and he seemed to think that it was quite likely that the United States would agree to postponement until the next session or to reference by the Assembly to the Interim Committee. He asked me to make it clear to you that postponement was not, in his view, any step to the solution of the Formosa problem and also that it would involve the continued use of the Seventh Fleet, to prevent hostilities between Formosa and the Mainland, for an indefinite period.

[43] Pour un extrait de cette déclaration, voir *Documents sur la crise coréenne*, pp. 13-14.
For an excerpt from this statement, see *Documents on the Korean Crisis* pp. 12-13.

2. He said that there were three main purposes towards the Formosa issue in the current United States policy:

(a) Formosa should not pass into hostile hands. The United States has the major responsibility for maintaining security in the Far East and in the event of war would have by far the largest military commitment there. The substantial non-Communist resources on the island, both in manpower and in other respects, could not be handed over to Peking at a time of great tension.

(b) They were anxious to prevent the disposition of the island becoming a serious issue between friends whose policies were already divergent on Far Eastern questions. Therefore they favoured injecting it into the United Nations Forum, where it might be discussed in the usual manner for perhaps two or three years, after which the situation should be clearer and the policies of the democratic countries less divergent.

(c) No steps should be taken at the present time which would have the effect of injecting Formosa as a possible issue leading to war.

3. In illustrating these points he made a number of comments. He asked me whether the Canadian Government supported the immediate application of the Cairo Declaration. When I said that we believed that the Cairo Declaration should be observed as requiring that Formosa should become part of China rather than an independent or trusteeship territory, he asked whether that meant that we supported immediate recognition of the authority of the Peking Government over Formosa. I said that we were making no such suggestion, but that our present concern was that the United Nations might by implication be saddled with responsibility for enforcing a recommendation on the future of Formosa if the resolution before the Assembly were adopted. He made it clear that the settled policy here is not to accept the Cairo Declaration as a binding obligation in present circumstances.

4. He also said that the movements of Communist forces on the Mainland seemed to indicate that there was no early intention to deliver an attack on Formosa.

297. DEA/50056-A-40

Le chef de la délégation à l'Assemblée générale des Nations Unies au secrétaire d'État aux Affaires extérieures

Chairman, Delegation to United Nations General Assembly, to Secretary of State for External Affairs

TELEGRAM 479 New York, November 23, 1950

SECRET. IMPORTANT.

Repeat Washington No. 64.

CHINESE ITEM

Following from Riddell, Begins: Late Tuesday and early Wednesday, in consultation with the United Kingdom, Australian and Indian delegations, we made a canvass of other delegations and found that surprising number were prepared to act

ties, Japan would extend most-favoured-nation treatment, subject to normal exceptions.

(6) *Claims.* All parties would waive claims arising out of War Act prior to September 2nd, 1945, except that (a) the Allied Powers would, in general, hold Japanese property within their territory and (b) Japan would restore Allied property or, if not restorable intact, provide yen to compensate for an agreed percentage of lost value.

(7) *Disputes.* Claims disputes would be settled by a special neutral tribunal to be set up by the President of the International Court of Justice. Other disputes would be referred either to diplomatic settlement, or to the International Court of Justice."

1044. DEA/50051-40

Le secrétaire d'État aux Affaires extérieures
au représentant permanent auprès des Nations Unies

Secretary of State for External Affairs
to Permanent Representative to United Nations

TELEGRAM 544 Ottawa, September 28, 1950

SECRET

Reference my telegram no. 539 of September 27, 1950.†

JAPANESE PEACE TREATY

It is expected that Mr. Dulles will seek an interview with Mr. Pearson in the near future in order to present the U.S. memorandum sent to you as Washington's No. 241 of September 25. This memorandum was given to our Embassy in Washington on a personal basis and care should be taken not to indicate to the Americans that we have seen it in advance of their presentation of it. The memorandum does little more than sketch in general outline the U.S. approach to the Peace Treaty. It is the opinion of our Embassy in Washington that, although the Americans will not wish to discuss details until a later stage, it is open to us to raise any questions which may occur to us at this stage. The following are general questions which occur to Department officials which Mr. Pearson might wish to ask Mr. Dulles when they meet. The material is set out under the headings used in the U.S. memorandum and this telegram should be read in conjunction with Washington's No. 241 of September 25, to you. Under certain of the headings no questions are posed, but comments are included for Mr. Pearson's use.

(1) *Parties.* Under the heading the problem of procedure might be discussed. The following questions are pertinent:

(a) Does the United States hope to obtain, in writing, the preliminary comments of the FEC governments on the points made in their memorandum? If so, is it contemplated that such comments will be circulated to all the governments concerned?

If this is to be the method employed by the United States, the next stage presumably would be the circulation of a memorandum embodying the preliminary comments of all the governments approached.

(b) At what stage do United States officials think it likely that representatives of FEC governments would meet for informal discussions?

(c) What attitude is the United States likely to take towards the problem of Nationalist and Communist Chinese participation in both the preliminary and later stages of the discussions?

In telegram No. 70 of September 20† Mr. Ronning reported on developments which would indicate that Peking did not plan to invade Formosa this season. In his opinion it would be a mistake on the part of the United States to ignore this change of heart and pursue their discussions of the Japanese Peace Treaty without taking into account the interest of the mainland Chinese in the Japanese peace settlement. It seems only reasonable that as soon as they gain control over their own affairs the Japanese must and will do business with the Chinese mainland and will deal with whatever government is in effective control, no matter what its political persuasion may be.

(d) Has thought been given by United States officials to participation in the preliminary discussions by such non-FEC members as Ceylon, Indonesia and the Indo-Chinese states. These states have been recognized as independent states by the United States and their interest in the Japanese peace settlement is an obvious one.

(2) *United Nations*. It would be of interest to know whether the United States regards Japan's entry to the United Nations as a matter to be dealt with in the Peace Treaty.

Paragraph 5 of the Preamble of the Italian Peace Treaty notes that the fulfilment of certain conditions "enabled" the Allies to support Italy's application for United Nations membership. However, such an undertaking might prove contentious in the case of Japan. There is something to be said for dealing with this matter outside the Peace Treaty. The United States could sponsor Japan's entry and any difficulties which might occur would not affect the treaty of peace.

(3) *Territories*. The status of the Ryukyu and Bonin Islands is distinguished in the United States memorandum from that of the other components of the former Japanese Empire. United States officials might be willing to give in more detail their arguments in support of such a distinction.

The terms of the Cairo Declaration insofar as it applied to Formosa have been accepted in principle by the Canadian Cabinet. It might be advisable therefore to indicate our general ideas in this regard and to ascertain if possible the arguments which the United States plans to advance in support of a "future decision" for matters which have already been determined in wartime agreements of the Four Great Powers. Disposition of the territories in question should be given careful consideration before the General Assembly is saddled with the task of enforcing territorial decisions on such powerful states as China (Formosa and the Pescadores) and the U.S.S.R. (Sakhalin and the Kuriles), who would be the contesting powers.

It would be interesting to get the reaction of United States officials to the idea of simply having Japan renounce its claims to the territories involved leaving the issue of their disposition to be settled outside the Peace Treaty.

(4) *Security*. The United States proposals in this regard do not go far towards a solution of what has always been the most contentious issue of the Japanese Peace Treaty. It may be possible to obtain some clarification of United States intentions along the following lines:

(a) Do United States officials regard Japanese security as a matter to be dealt with in the treaty or rather as the subject of bilateral agreements negotiated with Japan when its full sovereignty has been restored? Our initial reaction is that the inclusion in the Peace Treaty of a United States guarantee of Japanese security, no matter how guarded the reference may be, would destroy any chance of the acceptance of the treaty by the U.S.S.R. and China.

(b) Has the United States given thought to the problem of satisfying the understandable desire on the part of some of her wartime allies to be assured that security is offered them against possible Japanese military resurgence.

The United States stand on behalf of the United Nations in Korea will have made a favourable impression, but certain states may be satisfied to see Japan become fully sovereign only if some almost automatic guarantee of their security against Japan is provided by the United States or by some combination of powers, including the United States, committed to preserve the peace in the Pacific area.

(5) *Political and Commercial Arrangements*. The adherence by Japan to bilateral United States-Canadian fishing and pelagic sealing agreements should be the subject of separate study by the fishery experts of the two countries. In the writing of the commercial clauses of the Japanese Peace Treaty consideration will have to be given to methods by which Japan can be brought to adhere to the generally accepted standards of commercial behaviour. The subject of reciprocal most-favoured-nation treatment is one on which even preliminary comment is difficult until detailed study of such a policy is made by commercial experts in the larger context of other treaty provisions.

(6) *Claims*. It would be valuable to have some clarification of the United States attitude towards Japanese external assets in neutral countries. Canada would be interested in these external assets for inclusion in any general pooling arrangements which may be decided upon by the Government.

It might be desirable to raise with United States officials the question of occupation costs. We would wish to protect the charges incurred by the Canadian Liaison Mission in Japan by reason of goods and services obtained under the system of procurement demand.

The Japanese "gold pot" is likely to be a difficult issue since there is disagreement between the United States and the United Kingdom on its proper disposition. United States officials might be willing to detail their position in this regard.